

2021 M L D 1959

[Lahore (Rawalpindi Bench)]

Before Jawad Hassan, J

IQRA EDUCATIONAL SOCIETY and another---Petitioners

Versus

**BOARD OF INTERMEDIATE AND SECONDARY EDUCATION and others---
Respondents**

Writ Petition No.1206 of 2021, decided on 2nd June, 2021.

Punjab Government Rules of Business, 2011---

---R.3 & First Sched., Entry No. 16---Constitution of Pakistan, Art.199---Constitutional petition---Allocation of business---Higher Education Department---Board of Intermediate and Secondary Education---Scope---Petitioners were aggrieved of non-affiliation of their schools by the Board of Intermediate and Secondary Education (Board) for the year 2019-2020---Contention of petitioners was that they were discriminated as schools of nearby locality were given affiliation---Contention of Board was that the petitioner had applied for affiliation without fulfilling pre-requisites of Cl. 10, S.3 of the Regulations Calendar Volume 1 of the Board of Intermediate and Secondary Education---Validity---High Court observed that since the matter was with regard to discrimination and non-compliance of regulations was involved which could not be dealt with by the court at this stage because under the Punjab Government Rules of Business, 2011 (Rules), the Board was an autonomous body of the Higher Education Department as per First Schedule of the Rules, therefore, Constitutional petition was disposed of in terms that impugned letter was set aside---Matter was remitted to the Secretary Higher Education Department who was directed to pass a speaking order based on solid reasoning strictly as per law.

Al-Bakio International through Authorised Officer and 5 others v. Federation of Pakistan through Secretary. Ministry of Law and Justice and 8 others PLD 2021 Lah. 1; Fiaqat Hussain and others v. Federation of Pakistan through Secretary, Planning and Development Division, Islamabad and others PLD 2012 SC 224 and in the matter of Miserable Condition of the Schools 2014 SCMR 396 ref.

Muhammad Ilyas Shaikh for Petitioners.

Shaukat Rauf Siddiqui, Additional Advocate General on Court's Call.

Haroon Irshad Janjua, ASC/Legal Advisor for BISE, Rawalpindi.

ORDER

JAWAD HASSAN, J.---The heart of controversy involved in this petition is the discrimination meted out with the Petitioners on the part of the Respondents in non-registering Petitioners' schools namely Iqra Higher Secondary School for Boys, Gujar Khan and Iqra Higher Secondary School for Girls, Gujar Khan (the "Schools") for the year 2019-2021.

2. The Petitioners have invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging letter dated 06.03.2021 communicated vide letter dated 16.03.2021 (the "Impugned Letter") issued by the Respondents whereby request for affiliation of the School was refused.

3. Learned counsel for the Petitioners states that the Respondent No.1 has passed the impugned order in a sketchy manner without any legal basis or foundation of law/rules/regulations. He argues that almost 150 students of the local area between the ages of 5 to 16 are getting education in the Schools and if permission with regard to affiliation is not granted, the future of the students will be at stake.

4. On the other hand, learned Legal Advisor of the Respondent No.1 states that the Petitioner applied for the affiliation without fulfilling prerequisites of Clause-10, Section 3 of the Regulations Calendar Volume 1 of the BISE.

5. In response, learned counsel for the Petitioners states that the Respondents have recently given affiliation to some schools of nearby locality as such discriminatory treatment is being adopted with him and delay causing in registering the Schools amounts to violation of fundamental rights of the children of the area. He strenuously relies on Article 25-A of the Constitution according to which the State shall provide free and compulsory education for all the children of 5 to 16 years old. In support of his arguments, he has relied on recent judgment of this Court passed in "Al-Bakio International through Authorised Officer and 5 others v. Federation of Pakistan through Secretary, Ministry of Law and Justice and 8 others" (PLD 2021 Lahore 1). He next relies on "Fiaqat Hussain and others v. Federation of Pakistan through Secretary, Planning and Development Division, Islamabad and others" (PLD 2012 Supreme Court 224) and in the matter of Miserable Condition of the Schools (2014 SCMR 396).

6. Since the matter with regard to discrimination and non-compliance of BISE Regulations is involved which cannot be dealt with by the Court at this stage because under the Punjab Government Rules of Business, 2011 (the "Rules"), BISE, Rawalpindi is the autonomous body of the Higher Education Department as per First Schedule of the Rules, therefore, the instant petition is disposed of in terms that the Impugned Letter dated 06.03.2021 communicated I through letter dated 16.03.2021 is set aside. The matter, in hand is remitted to the Secretary Higher Education Department, Lahore who is directed to pass a speaking order based on solid reasoning strictly as per law keeping in view the dictum laid down in aforementioned judgments which are binding on it under Articles 189 and 201 of the

Constitution. The Secretary HED, Lahore shall provide opportunity of hearing to all the concerned including the Petitioners and decide the matter within a period of one (01) week. The Petitioners shall appear before the Secretary along with certified copy of this order on 08.06.2021. Compliance report by the aforesaid Secretary shall also be submitted to the Deputy Registrar (Judicial) of this Court.

SA/I-12/L

Order accordingly.